



Planning

Planning Statement

Client:

Mr Joshua Singer

30 Allandale Avenue
London, N3 3PJ

*Retrospective application for the use of the existing
ancillary swimming pool building for commercial
operations*

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1. Introduction

- 1.1 This statement is produced to support a planning application for the retrospective change of use of the ancillary swimming pool enclosure, at 30 Allandale Avenue, London, N3 3PJ for commercial use between the hours of 14.00 to 20.00 on Mondays – Wednesdays, 09.30 to 16.00 on Fridays and 08.30 to 17.30 on Sundays. Therefore, a permission for mixed use (residential/commercial) is sought for the site.
- 1.2 The submission is retrospective in nature and is in reference to the use of the swimming enclosure commercially. For clarity, the structure itself has not been altered. There are no changes to the access or parking arrangements proposed, as it is deemed suitable for the low-intensity, mixed-use.
- 1.3 This planning statement will cover the background to the application and provide the necessary information to enable its determination by officers at the Council. It will consider the proposal in light of relevant planning policies and other material considerations. The conclusion reached is that key material considerations and the wider objectives of National and Local planning policy support the grant of permission.
- 1.4 This application follows an enquiry made by Barnet Council's enforcement team (**ENF/1246/24**) in which it was stated that the use of the private swimming for public use was in breach of planning control. The letter clarifies that the pool enclosure was already deemed lawful and therefore, this application seeks to regularise the mixed-use.
- 1.5 In addition to this planning statement, the application is accompanied by the appropriate planning application forms and ownership certificate, duly signed and completed, and the following documents prepared by Homes Design:

- 1:2500 Site Location Plan
- 1:500 Proposed Block Plan

- 1.6 The relevant application fee will be submitted by the applicant separately.
- 1.7 For context, application **F/01441/14** was approved on 3rd April 2014, which already deemed the built form lawful. Therefore, the structure itself has been accepted by the Council and the enclosed proposal, relates strictly to the change of use occurring for the swimming lessons.

2. Site Location and Description

- 2.1 The application site is within a highly residential area, within the parameters of the settlement. The site lies directly opposite to open fields associated with 'College Farm'.
- 2.2 The surrounding area is residential and largely characterised by detached residential dwellings that present a variation of architectural stylings and features. In terms of immediate uses, a list of commercial operations that are in proximity of the site are provided below:

- 1) College Farm, 45 Fitzalan Road, London, N3 3PG
- 2) CJC Hair & Makeup – 1 Crooked Usage, London, N3 3HD
- 3) Gabriel Harris Solicitor, 44 Chessington Avenue, London, N3 3DP

- 2.3 The main dwelling at No.30 benefits from a spacious driveway to the front providing up to 4no. spaces. Existing access is provided to the site from Allandale Avenue and on-street spaces are available adjacent to the dwelling, with no restrictions in the area.
- 2.4 There are bus stops are located within 250 metres of the site, ensuring that there are public transport links. Due to the localised customer base, several families utilise these sustainable modes of transport, in addition to those who currently attend the site by car.
- 2.5 The site is not listed, adjacent to a listed building, or within a conservation area. The site is not subject to any Tree Preservation Orders (TPO).

3. Planning History

- 3.1 **15/05924/RCU** – Retention of existing side, front and rear extensions (retrospective application) [Approved, 17/11/15]
- 3.2 **F/01441/14** – Erection of new swimming pool enclosure, following the demolition of existing storage shed [Lawful, 03/04/14]
- 3.3 **F/01655/12** - Single storey front and rear extensions. Two-storey side extension with pitched roof to match existing and conversion [Approved, 10/07/12]

4. Development Proposals

- 4.1 The National Design Guide (2019) identifies that “well-designed homes and buildings are functional, accessible and sustainable. They provide internal environments and associated external spaces that support the health and well-being of their users and all who experience them. They meet the needs of a diverse range of users,

taking into account factors such as the ageing population and cultural differences. They are adequate in size, fit for purpose and are adaptable to the changing needs of their occupants over time” (para 120-121).

- 4.2 Regarding the requirements of NPPG Paragraph: 029 Reference ID: 14-029-20140306 in respect of Design and Access Statements, the proposal is described as follows:
- 4.3 **Use and Amount:** The proposal relates to the retrospective use of the swimming pool outbuilding for commercial operations between 14.00 to 20.00 on Monday – Wednesday, 9.30 to 16.30 on Fridays and 08.30 to 13.00 on Sundays. To clarify, there are **no lessons** on Thursdays or Saturdays.
- 4.4 For hours of operation, it is proposed that the start-times and end-times as set out above, can be suitably controlled via planning condition. This ensures that there are no lessons carried out during unsocial hours in the early morning (prior to 8.30) and late evening (after 20.00). As per the existing arrangement, there will be **no lessons** on Thursdays or Saturdays.
- 4.5 Each swimming lesson lasts for a duration of 30 minutes, starting at the beginning of the hour and are conducted on a 1:1 or 1:2 basis. This allows for a 15-minute gap between lessons to prevent lessons from overlapping.
- 4.6 There are two swimming teachers conducting lessons simultaneously within the pool enclosure and the maximum number of children per lesson is capped at 2. As such, there are between 2-4 children in the pool enclosure at a time and an approximate number of 18-20 visitors at the site per day. Overall, the restricted hours of operation on five days a week, in combination with the small lesson sizes, ensures that vehicular movements are sporadic. Particularly, with some customers

who live in the immediate area preferring to walk or use public transport.

- 4.7 The building subject to this application caters for all children but notably, approximately 50% of these are SEND. With this considered, the facility provides a private swimming pool in which tailored and accommodating lessons can be given. Ultimately, this creates a suitable, calming environment where SEND children can be taught, that can cater for their specialised needs. These lessons cannot be feasibly provided in a standard pool and as such, this is necessary for safeguarding and to ensure they are not exposed to the public during their lessons. It is noted, that for non-SEND children the pool still provides an alternative and occupies a gap in the market, for which there is a high demand.
- 4.8 There are children that use the facility who may simply have differing learning styles or religious beliefs that make the use of public pools challenging or impractical and as will be explored, Barnet's local policy encourages the provision of viable alternatives for education/community uses. In each situation, there will be a **maximum** of 2 children in each lesson and 4 children at a time.
- 4.9 The size and layout of the swimming pool outbuilding has not been altered from the original planning consent **F/01441/14** and it is reiterated that no further alterations are included within this submission.

5. Policy Assessment

- 5.1 **National Guidance:** The National Planning Policy Framework (NPPF) is a relevant material consideration to the application.
- 5.2 The purpose of the planning system is to contribute to the achievement of sustainable development. So that sustainable development is pursued in a positive way, at the heart of the

Framework is a presumption in favour of sustainable development. Paragraph 38 of the NPPF states that “Local planning authorities should approach decision on proposed development in a positive and creative way” and “at every level should seek to approve applications for sustainable development where possible”.

- 5.3 **Principle of Development:** Section 38(6) of the Planning and Compulsory Purchase Act 2004 requires that planning applications be determined in accordance with the Development Plan unless material considerations indicate otherwise.
- 5.4 Barnet’s currently adopted plan, consists of the following relevant documents:
- Core Strategy DPD
 - Development Management Policies DPD
- 5.5 It is acknowledged that Barnet have an emerging local plan, currently at the Regulation 24 stage of the process. These policies are recognised to have some weight; but cannot be afforded equal weight to the Council’s adopted local plan.
- 5.6 This section of the statement is split into subheadings which argues that the principle of development is acceptable on several levels.

SEND Education facilities

- 5.7 Article 8 of the European Convention on Human Rights can only be interfered with, where it is lawful and in service of the public interest. Within the Equality Act 2010, Disability is one of the 9 ‘protected characteristics’ covered by discrimination law. By definition, it is a physical or mental impairment that has a “substantial or long-term” negative impact on daily activities.

- 5.8 Attending swimming lessons is a typical day-to-day activity for young children, that parents understandably encourage for its recreational, health and lifetime benefits as a vital skill. For many children, lessons at public pools amongst a larger class would be appropriate for their learning styles and needs. However, this activity which should be universally accessible, presents numerous challenges for SEND children in this type of overstimulating environment, that often severely limits opportunities to acquire this life-skill on an equal footing with their peers.
- 5.9 To cite relevant case law, *Pieretti v Enfield London Borough Council* [2010] EWCA Civ 1104 [2011] relates specifically to the equivalent provision in the Disability Discrimination Act. For context, Wilson LJ applied the ‘*six general principles*’ established by the High Court in *R (Brown) v Secretary of State for Work and Pensions and another (Equality and Human Rights Commission intervening)* [2008] EWHC 3158 (Admin). These govern how authorities use their executive function, when meeting the PSED:
- A. Those in the public authority who have to take decisions that do or might, affect (in that case) disabled people must be made aware of their duty to have ‘due regard’ to the identified goals. An incomplete or erroneous appreciation of the duties will mean ‘due regard’ has not been given to them.*
- B. The ‘due regard’ duty must be fulfilled before, and at the time that a particular policy that will or might affect disabled people is being considered by the public authority in question. Attempts to justify a decision as being consistent with the exercise of the duty when it was not, in fact, considered before the decision are not enough to discharge the duty.*

- 5.10 Therefore, in line with the relevant principles outlined, the policymaker or decision-maker should exercise '*due regard*' when formulating policy or determining applications that would impact disabled individuals. These principles work in tandem with the provisions of the Equality Act and consolidate that the Council should factor Human Rights as a material consideration in favour of the proposed development, which would allow for SEND children to continue to benefit from the invaluable service provided at the site.
- 5.11 **Policy S3** of the Barnet adopted plan (Education and childcare facilities) specifies that Councils should ensure that there is a sufficient supply of "*good quality education and childcare facilities to meet demand and offer educational choice*".
- 5.12 The operative phrasing within the policy text, is "*educational choice*" which is crucial to this proposal, which ensures that SEND children with specialist needs can be accommodated and also, parents of non-SEND children are given the opportunity for 'alternative' options, that may be more appropriately suited to their children's needs, for a multitude of reasons.
- 5.13 **Criterion 7)** supports this notion further, stating that it should be ensured that "*new developments are accessible and inclusive for a range of users, including disabled people, by adopting an inclusive design approach*". To reflect on this, the use and design of the swimming pool enclosure itself, embodies this "*inclusive*" approach for the teaching of SEND and non-SEND children, largely through the enclosure itself which acts as a discreet and natural sound buffer.
- 5.14 The proposed use of the enclosure allows for children's swimming lessons to take place in a smaller, secure, and private location. This ensures that the SEND children who comprise roughly half of the user base, that are uncomfortable with swimming in public spaces have a

suitable location to learn and undertake physical activities/exercise/recreation. For SEND children that experience sensory issues and noise sensitivity, the pool enclosure is within a private, discreet location where they can swim without experiencing discomfort or overwhelm.

- 5.15 Further to this, for the SEND children that swim at the pool enclosure, it is the **low-intensity** use of the operation that has attracted local parents to select this private venue for their children, who are struggling with sensory overwhelm and noise sensitivity. As highlighted by a support letter sent by Ms. Grazioli (see **Appendix 1**) numerous children that swim at the facility *"struggle in environments that are overstimulating or require prolonged periods of focus, such as public swimming pools or gym swimming pools"*.
- 5.16 This is largely on account of the *"high-noise levels, crowds and chaotic surroundings"* which is not conducive to a productive learning environment for those with these specialist needs. She concludes by emphasizing the importance of acquiring essential life-skills at a young age and this reference substantiates that the private swimming enclosure provides a contrasting experience to public pools that provides a safe learning environment for children with specialised needs.
- 5.17 An additional letter from Mr. Ralph (see **Appendix 2**) highlights that the lessons have had a significant impact on the well-being and confidence of their child who has autism/sensory processing disorder, which naturally makes him highly sensitive to loud, chaotic environments. The existence of this facility provides him with the **equal** opportunity to develop valuable life-skills and as is aptly stated *"Not every child is suited to a public pool and 30 Allandale Avenue is providing a unique offering which helps many"*. This sentiment extends to the non-SEND children that are taught at the facility, who

have a range of other specific requirements that would benefit from this alternative option.

- 5.18 Overall, the support letters are a testament to the calm and quiet atmosphere created through this development and consolidates that there is no harmful level of noise generated by the use, which has been specifically chosen by parents of children with sensory processing disorder; as a suitable alternative to public pools.

Community Value

- 5.19 Paragraph 97 of the NPPF is specifically relevant to this submission in which it states, that to ensure the social, recreational and cultural facilities and services the community needs are sustained, planning decisions should:

c) guard against the unnecessary loss of valued facilities and services, particularly where this would reduce the community's ability to meet its day-to-day needs

- 5.20 Over the course of time and as attested to by the two-client reference (see **Appendix 1 & 2**), the pool has become a valued facility within the community, which satisfies a clear need for alternatives to public pools, particularly for SEND children.
- 5.21 This is echoed in the Barnet Core Strategy (2012) **Policy CS10** which specifically states at paragraph 14.1.7 that community/educational uses **may be appropriate** in residential areas, “*where they do not have a demonstrably harmful impact on the amenities of nearby residential properties and other uses in terms of noise and traffic generation, or on the character of the surrounding area*”. **Policy DM13** (Community and education uses) reiterates that new

community or educational uses must ensure there is no **significant** impact on the flow of traffic and road safety.

- 5.22 Thus, in accordance with the NPPF and **Policy CS10** and **DM13**, these uses should be safeguarded and due to the low-intensity and minimal amenity, transport and character impact of the mixed-use, its loss would be considered wholly **unnecessary** and to the detriment of the children that benefit from this operation.
- 5.23 Moreover, if this facility is not retained it will drastically impact these minority groups that will have a ripple effect within the local community, for those who currently utilise this facility and their families. The site is providing a highly sought after alternative for SEND and non-SEND children, for which No.30 Allandale Avenue is unique in the area.
- 5.24 It is clarified that proposal does not pertain to the 'expansion' of a business, but if permission is not granted a valuable community asset will be lost, whilst the employment of the swimming teachers and the service provided to the children may be drastically impacted.
- 5.25 Overall, there is a recurrent thread that runs through national, city-wide and local policy, that supports and encourages sports and recreation facilities and particularly, when they can simultaneously cater for minority groups and provide such a valuable resource for the local community. As alluded to within section 2 of this report, the surrounding area contains multiple commercial businesses ensuring that it is within the character of the area for mixed use sites/commercial sites to be operational.
- 5.26 Barnet's policy aspirations align with the NPPF and the nature of the commercial activity on site is supported, thus, for the reasons outlined above the principle of the development is considered acceptable.

- 5.27 **Character and Appearance of the Area:** There are no physical changes proposed in relation to the retrospective use as a commercial swimming pool as the building will remain the same. Therefore, there is no visual impact on the character and appearance of the area.
- 5.28 The parking area/driveway to the front of the dwelling provides ample space for visitors to park safely within the site. Therefore, it is deemed to be in character with the surrounding area.



Fig 1 – 44 Chessington Avenue – [Solicitors/dwelling]

- 5.29 For local examples of dwellinghouses with mixed business uses, the above dwelling at *Fig 1* is located at 44 Chessington Avenue (the road running parallel to Allandale Avenue) is a prime example of where a residential/commercial use has been combined.



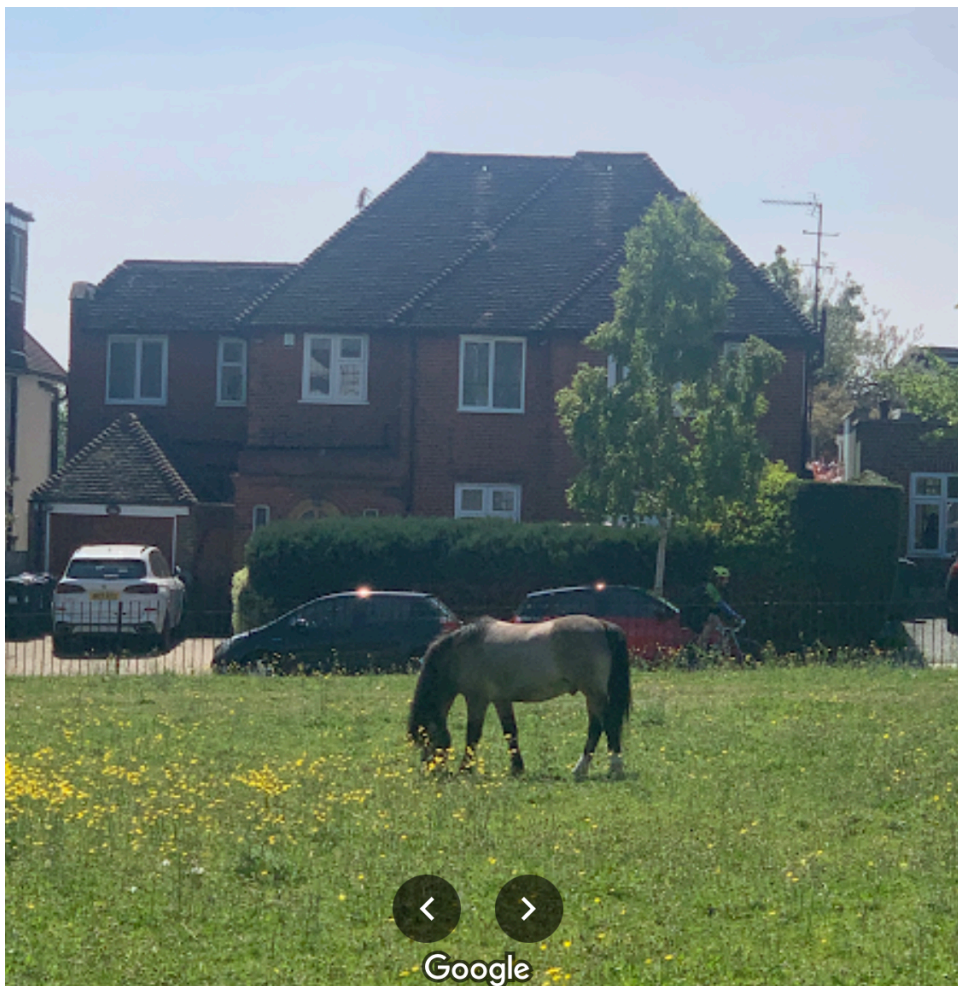
Fig 2 – 1 Crooked Usage [Hair and makeup studio/dwelling]

- 5.30 Furthermore, as illustrated at *Fig 2*, the dwelling at No.1 Crooked Usage is located at the corner plot where Allandale Avenue coalesces with Crooked Usage. Thus, the mixed-use at this property can be considered within the immediate context of street-scene. Again, the driveway benefits from ample parking spaces that would be appropriate for accommodating the mixed-use.
- 5.31 On balance, there is no built form proposed and the mixed-use aligns with mixed residential/commercial uses in the vicinity and there is no harm to the character of the surrounding area.
- 5.32 **Residential Amenity:** To preface, there are no physical changes proposed as part of this application, as such there would be no loss of amenity with respect to loss of light, overlooking or overbearing.
- 5.33 The proposal is sensitive to its surroundings in which the hours of operation have been intentionally limited to ensure that the amenity of neighbours is not impacted. The operation on the weekend is restricted to Sundays only and the commercial operations on site

have been carefully considered to ensure that no adverse impacts are created.

- 5.34 In relation to noise, lessons are undertaken on a 1:1 or 1:2 basis per 30-minute session and on account of the small class sizes and the nature of the pool 'enclosure', with respect to noise the impact on amenity, would not be adverse or even discernible.

Fig 3-5 – Grazing field associated with 'College Farm' opp. the dwelling





- 5.35 As depicted above in *Fig 3-5*, the open green space used by 'College Farm' which is directly opposite the dwelling at No.30, is frequented by horses, goats and donkeys associated with the farm. The farm itself extends along the length of Allandale Avenue towards Regent's Park Road and towards Hendon Lane. Due to the presence of farm animals, this is a local attraction for local families, who will park up to feed the animals. On account of the location and proximity to the dwelling, space parking on-street at Allandale Avenue is favoured and subsequently, on weekends, there is an increase in footfall and parked cars on Allandale Avenue, directly opposite No.30.
- 5.36 As highlighted previously, the swimming lessons are staggered and have low attendance, with a maximum of 2 children per lesson and 4 children in the pool at a time. The lessons take place within a contained enclosure and as such, the only noise arising from the use would be from the comings and goings of cars and entrance and exit via the side-gate of the property. It can be fairly assumed that the noise generated using the side-gate at staggered times, would not amount to a 'perceptible' increase in the noise level. Particularly, with

the contextual factors for this site considered, namely 'College Farm' which lies opposite.

- 5.37 Therefore, the noise generated by the swimming lessons at No.30 would not be dissimilar to what would arise from a residential ancillary use. As such, there would be no material increase in the noise level, that could amount to harm to neighbouring amenity. Furthermore, due to the sound insulation of the enclosure, noise from the pool is barely audible from the outside.
- 5.38 With the reasons outlined, the site is firmly within the settlement boundary and not located in a remote, rural location and as such, there is a 'baseline' level of noise generated. On the weekends, this is exacerbated by attractions such as 'College Farm' adjacent to the property, which is enjoyed by families in the immediate area. It is highlighted then, that within the context of the area and the additional, minimal noise generated would be largely imperceptible.
- 5.39 To reiterate, the number of children does not exceed that of what is commonly accepted for childminders in homes; without the requirement of planning permission. In this regard, it is generally accepted that 2 children being looked after by a childminder at the childminder's home; does not amount to a material change of use of a dwellinghouse. This type of scenario, would freely accommodate 2 children within the dwellinghouse and residential garden of a dwelling, making appropriate levels of 'noise' and undertaking 'activities' without a material change of use occurring that would require planning permission.
- 5.40 An appeal decision at Four Oaks, Back Lane, Meriden, Solihull was allowed on 10/10/24 (see **Appendix 3**). This related to a change of use to ancillary swimming pool outbuilding for commercial use between the hours of 09.00-17.45 on weekdays, which equally

catered for non-SEND and SEND children. Therefore, clear parallels can be drawn with the enclosed proposal, however, it is reiterated that this site was subject to a higher level of constraint within designated Green Belt; which was a key consideration.

- 5.41 With this appeal decision considered, it was deemed acceptable for up to 6 children to utilise the swimming pool facilities with **no adverse impact**. As a direct comparison, due to the 1:1 and 1:2 lesson structure and the staggered appointments throughout the day, the commercial use of the site could not be construed to have a greater impact, with regards to amenity. Particularly, when the commercial use facilitates the safety of SEND children, whose specialised needs cannot be accommodated at public or community swimming pools.
- 5.42 Overall, it was maintained by the Inspector in paragraph 27, that although the swimming pool is not **exclusively** for those with special needs, there is a universal benefit of the provision of swimming lessons and teaching children a crucial life-skill. Additionally, it was reiterated that the creation of an environment suitable for individuals with **specific needs** outweighed any conflict with the development plan.
- 5.43 Another scenario at Sandringham Lane, Market Harborough was allowed at appeal (APP/F2415/W/22/3309050 – see **Appendix 4**) and related to change of use of a C3 outbuilding to a mixed use to provided 1:1 swimming lessons (retrospective). To draw a comparison, for the appeal site 'Sandringham Lane' the hours of operation are between 07 30 and 19 30 Mon-Fri and 08.00 and 19.30. Due to the operation occurring seven days a week and for longer hours, from the outset this is clearly a **higher intensity** operation than the enclosed proposal at Allandale Avenue.

5.44 In this case, in relation to noise concerns, paragraph 17 the Inspector noted that concerns were raised in regarding potential noise *“from visitors attending swimming lessons, who would need to walk across the back garden to and from the pool building. In doing so, they may well be heard from the neighbouring properties. However, gardens are commonly used for noisy activities such as play and recreation. The noise from visitors would not be **unusual** or **unduly disruptive**”*.

5.45 Furthermore, it is elaborated by the Inspector that due to the 1:1 lesson model, even in instances where people leave and arrive simultaneously, *“it is likely that only a **limited** number of visitors attending lessons would be on the site at any one time.”* This is a reasonable approach, which highlights that due to the inherent restrictions on class numbers, that the lessons would not cause unacceptable noise disturbance.

5.46 Lastly, a similar development was recently allowed at appeal in Wokingham Borough (see **Appendix 5**). The appeal related to the use of an existing C3 residential swimming pool for baby and toddler classes and residential use (Sui Generis). The timings of the classes were very similar to this; however, it is prudent to highlight that operated at a **higher intensity** with a maximum of 6 babies/toddlers per session. The Inspector states in their decision the following:

21. Undoubtedly, the swimming classes would generate an increase in traffic and associated noise and disturbance within this residential area. The additional activity created by the use of the residential swimming pool by parents/guardians bringing their children to use the facility is likely to be additional to what would normally be the case if the property were occupied as a single household. Noise would generate from additional car movements, the closing of car doors, and chatter as people move between the front of the property to the

rear of the site. However, this noise is likely to be intermittent as classes begin and end.

*22. It is proposed that use of the building for these swimming classes would not be permitted outside the hours of 10.00am to 2.00pm when surrounding residents might be more sensitive to any noise from additional comings and goings. Whilst some limited additional noise is likely to result from comings and goings, the evidence does not lead me to consider that it would be **particularly perceptible** or disturbing to the extent that the use of the pool would have a **detrimental effect** upon the living conditions of the occupiers of nearby properties. Furthermore, the building appears **well-insulated** and noise from inside the building would be **contained** and **unlikely to be audible** outside. [our emphasis]*

*23. **Consequently, I do not consider that the use of the facility on this level would have an unduly harmful effect on the living conditions of neighbouring residents with particular regard to noise and activity.** [Our emphasis]*

- 5.47 It is acknowledged by the Inspector here, that such a use would naturally increase the number of visits to the property, particularly for lessons that allow up to 6 children. However, when accounting for this the Inspector has concluded that such an activity in a residential area, will have no harmful effect on neighbouring residents.
- 5.48 Particularly, it is observed that due to the nature of the classes any noise would be “*intermittent as classes begin and end*”. Additionally, it was noted that the outbuilding itself was contained and therefore acted as a natural sound barrier, which again, is the case with the enclosed proposal.
- 5.49 Therefore, if the Inspector found this acceptable in relation to classes for up to 6 children, then it is reasonable to state that lessons on a

1:1 or 1:2 basis, at Allandale Avenue, would have lesser impact and in turn, an imperceptible increase for noise in a residential neighbourhood. Suitable conditions were proposed in this instance to ensure that the proposed mixed use has no adverse impact.

- 5.50 As highlighted in 'Use and Amount' section, the applicant is willing to accept conditions in relation to the proposed numbers and the hours of operation to ensure that the activity is suitable and functions without impact on neighbours. It is pertinent, that the operation does not exceed a reasonable number of children per lesson. In any case, due to the nature of the use, the lessons are private and have between 2-4 children, with 2 teachers in the pool at a time. Due to the class sizes, this number will never **exceed** 4 children. Cumulatively, the site-specific conditions and appeal scenarios above demonstrate that there would be no amenity harm resulting from noise levels.
- 5.51 **Transport and Parking:** For context, the site is within a PTAL rated area 2 and as such, is connected to several bus routes. It is within a walking distance for customers that live in the surrounding cluster of housing and on this point, two of the swimming teachers at the facility alternate between sustainable modes of transport for their commute, through cycling or bus travel.

Fig 6 – Walking distance to Crooked Usage bus stop

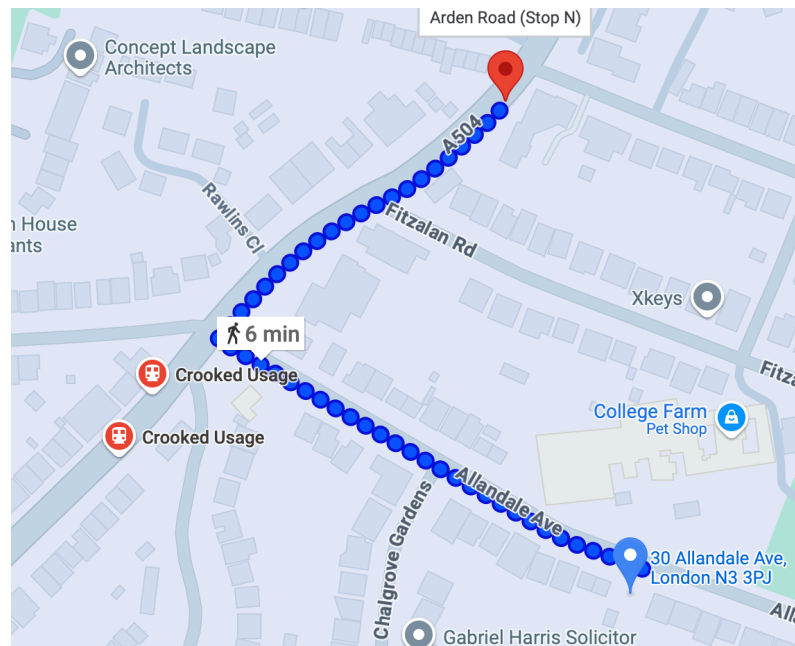
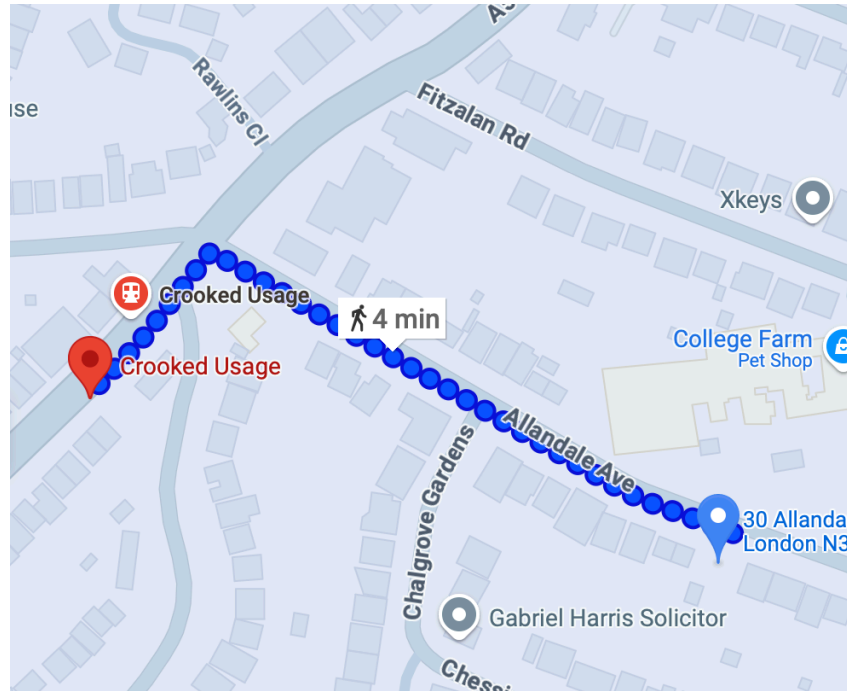


Fig 7 – Walking distance to Arden Road Bus Stop (Stop N)

5.52 As noted, there are up to 4no. parking spaces available on the driveway and 2no. on-street directly adjacent to the property. The proposal will have no adverse impact on the local highway network

as practicably, only 18-20 car journeys will be generated per day from the site and these trips will be staggered. Typically, it is estimated that there is a turnover of approximately 4 cars (maximum) per hour. Often, parents will bring multiple children and as such, they will be taught consecutively and this further reduces impact. It is noted that, of the 18-20 *potential* car journeys, some parents or carers walk and utilise public transport.

- 5.53 As such, there would be no overspill or threat of congestion on Allandale Avenue. Comparatively, when factoring occurrences such as parcel and postal deliveries, the frequency of visits would not be dissimilar to the daily comings and goings of a standard family dwelling. On balance, this would be a low intensity use, and these car trips would not amount to any material harm.
- 5.54 Paragraph 111 of the NPPF clearly states that development should only be prevented on highway grounds if “*the residual cumulative impacts on the road network would be severe*”. As clarified by the above, the property at No.30 has ample parking provision and due the low intensity of the use and number of children per lesson, the cumulative impacts on the surrounding highway network would be minimal and individual trips to the site would be staggered over the hours of operation.
- 5.55 **Policy DM17 (Travel Impact and parking standards)** identifies that parking provision should be in accordance with London Plan standards, except in the case of residential development.
- 5.56 In reference to the appeal decision at Sandringham Way (see **Appendix 4**), in paragraph 23 the Inspector observes that visitors attending the swimming lessons may travel by car which could lead to extra on-street parking. It is noted however, that the appeal site which takes access to ‘Sandringham Way’ and its connecting roads

*“are not subject to parking restrictions and there is **significant** scope for safe on-street parking close to the appeal property.”*



Fig 8 – On-street parking outside of the 30 Allandale Avenue

5.57 This is directly comparable to our application site at 30 Allandale Avenue (see *Fig 8*), whereby the residential road is suitably wide and not subject to parking restrictions creating ample opportunities for on-street parking. Despite this, due to the 1:1 and 1:2 lesson structure, utilising this is not often necessary; as there is sufficient capacity for vehicles on the driveway of the property. *Fig 9* and *Fig 10* illustrated below, exhibit the similarities in driveway capacity at 30 Allandale Avenue and the appeal site at Sandringham Way.



Fig 9 – Driveway at 30 Allandale Road



Fig 10 – 'Sandringham Way' – appeal site street-scene context

5.58 Further to this, the Inspector within the Sandringham Way appeal surmised that *"I find no reason why parking is bound to obstruct vehicular or pedestrian movements or to unacceptably restrict visibility on the road."* Therefore, the Inspector concluded on this

point that the associated vehicular movements for the swimming lessons would not adversely impact highways safety. Overall, this measured approach can be applied to the enclosed site, due to the clear parallels that can be drawn between both locations.

- 5.59 Cumulatively, this is sufficient capacity to avoid any overspill on the local highway network. Further to this, due to the staggered nature of the swimming lessons, it is unlikely that there would be overlap between comings and goings. However, in this event, the existing parking provision and lack of restrictions on the road could effectively accommodate this.
- 5.60 Additionally, there are two bus stops in the immediate vicinity and several families that utilise sustainable modes of transport to reach the site. Thus, it is considered that the generated vehicular movements would not inhibit the ability for neighbours to park at their homes. Overall, there are no harmful impacts to the highway network and the development would not impede the safety or neighbours or road users.

6. Conclusion

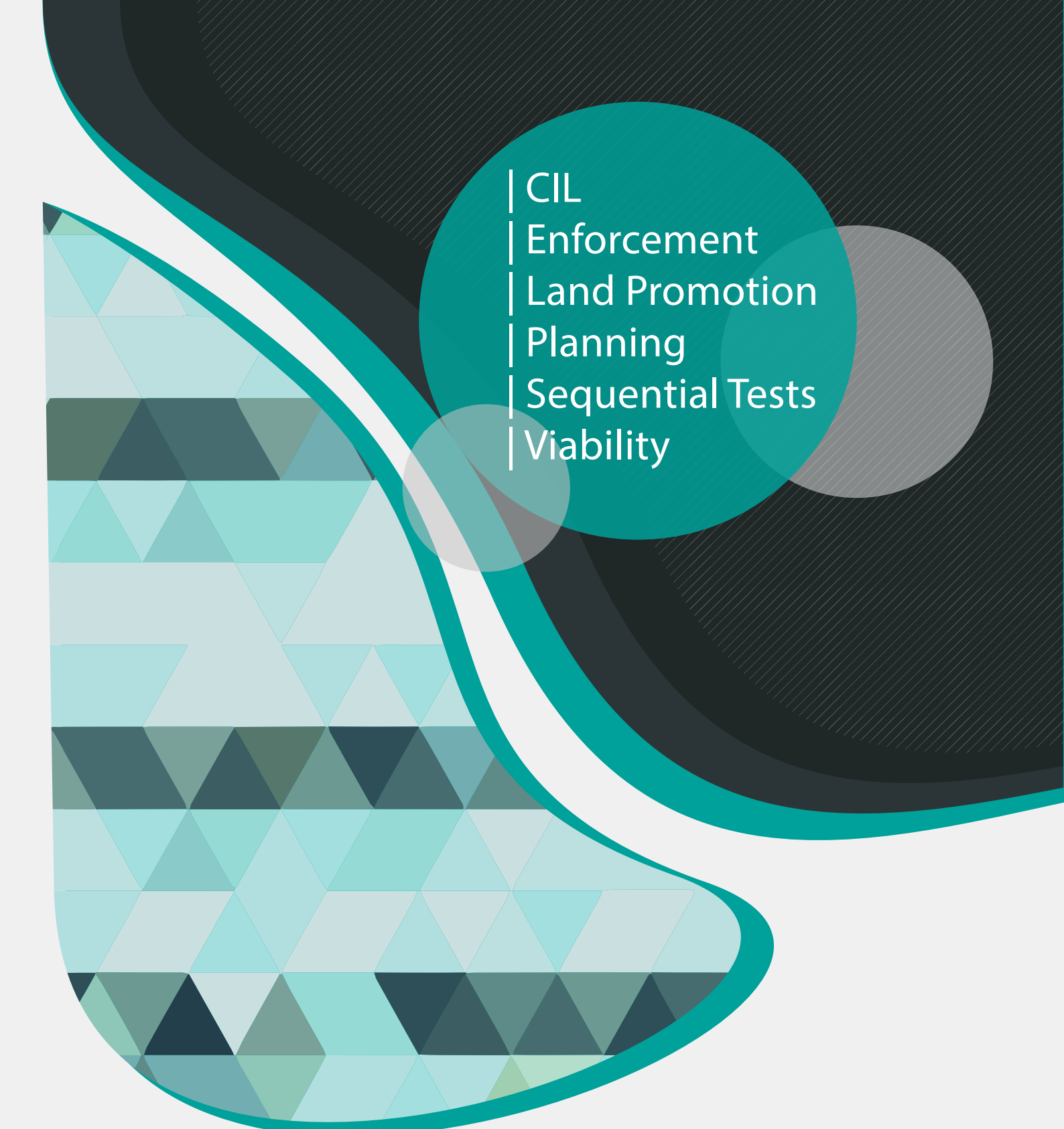
- 6.1 This statement has demonstrated that the proposed development is acceptable in principle and makes an efficient use of land.
- 6.2 Material planning considerations have been carefully considered and analysed, as evidenced in section 5 of this statement and the supporting plans and documents.
- 6.3 It is considered that the proposed development provides a valuable community facility, without adverse impact on the character of the area or neighbouring amenity. As established, the site is not within a

remote location and is firmly within the settlement boundary within an existing cluster of residential housing.

- 6.4 Additionally, the adjacent use of 'College Farm' invites regular footfall and commercial activity from the local area and as such the mixed-use of the site and its low-intensity operation, integrates effectively. The staggered lesson times and small class numbers, coupled with adequate parking provision, ensures there is no undue pressure on the surrounding highway network.
- 6.5 The supporting evidence provided demonstrates that this operation has become an invaluable asset to the local community and although not all children that utilise these services are SEND, approximately 50% of the user base constitutes SEND children. Therefore, if a key selling point for parents is the calm, discreet setting, then in conjunction with the 'enclosed' structure which provides natural sound insulation, there is no material or perceptible harm to neighbouring amenity through noise levels or disruption. Ultimately, the operation also provides a valuable **alternative**, for non-SEND children that have different learning styles, medical needs or come from religious backgrounds where they are better suited to a private, secure environment. This encourages **educational choice** as per **Policy S3**.
- 6.6 It is considered that the proposed scheme complies with relevant Development Plan Policies and is further supported by National Guidance. Therefore, it is respectfully requested that planning permission is granted.

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